BULLETIN No. 1

Explaining the Taft-Hartley Act

Prepared by the

OFFICE OF THE GENERAL COUNSEL

Issued by the

AMERICAN FEDERATION OF LABOR

Summary of Provisions Of the Taft-Hartley Act

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Now that the Taft-Hartley Bill has become the law of the land, every labor union in the country will be faced with the tremendous task of understanding the very numerous and complex changes in the law and of adjusting their operations to these changes. In order to aid in this difficult task, the office of the General Counsel of the American Federation of Labor will from time to time prepare and distribute bulletins and memoranda advising our affiliates of their new obligations and of the various steps they should take to protect their interests.

This first bulletin is intended to anticipate and answer the more important practical questions immediately confronting labor unions, including questions arising under those provisions of the new law which became effective when it was passed on June 23.

At the outset, some comment must be made respecting the application of the Taft-Hartley Act to the building trades industry and other local industries. As is well known, the old Labor Board, as a matter of administrative discretion, did not apply the Act to such industries. However, that cannot be relied upon as a guarantee that the new Board will follow the same practice.

1. What is the Status of *Existing* Agreements Containing Closed-Shop or Other Union-Security Provisions?

All existing closed-shop, union-shop, maintenance-of-membership, or other union-security agreements entered into prior to June 23, 1947, are valid and enforceable for the full term of the agreement, even though that agreement has two or three or more years to run. It is important to note, however, that if any such existing agreement is renewed or extended, automatically or otherwise, at any time *after* August 22, 1947, then the union-security provision is no longer operative. Therefore, it is recommended that any presently existing agreements containing union-security clauses which have more than a year to run be left untouched unless it is deemed more important to obtain a new agreement at the expense of union security.

2. May Unions Negotiate *New* Closed-Shop or Union-Security Agreements?

The new law on union-security agreements does not go into effect until sixty days after the enactment of the law, namely August 22,

SUMMARY OF PROVISIONS OF THE TAFT-HARTLEY ACT

Official Title
Sec. 1

The Taft-Hartley Act passed on June 23rd is officially titled, "Labor-Management Relations Act of 1947." The Act is divided into several parts and the first part is a complete revision of the National Labor Relations Act (NLRA).

Coverage
Sec. 2

The NLRA covers any employment which affects interstate commerce, unless it is specifically exempted. Federal, state and local governments, Federal Reserve Banks, non-profit hospitals, and any employer subject to the Railway Labor Act are not *employers* covered by the Act. Individuals employed in agriculture or domestic service, or by their parents or spouse, independent contractors, and supervisors (including foremen) are not *employees.* Apart from these exceptions, the Act can be administered to include all trade and industry which is not strictly local, like retail and service trades.

Administration
Secs. 4-6

How far the coverage of the Act is extended will depend, like many other questions, upon its administration. The Act is administered by a New Board, consisting of five members, in place of the former three-man Board. The old Board had full control over all its business; the new Board shares its powers with an independent General Counsel, who supervises the personnel of the regional offices of the Board and has "final authority" over the investigation and prosecution of all charges and complaints. The Board itself is left with the power to issue general rules and to decide cases brought to it by the General Counsel.

Rights of Employees
Sec. 7

Employees have a right to belong to unions and take part in union activities; and under the Taft-Hartley Act, they also have a right *not* to belong to unions, and *to refrain from* union activities. The unfair labor practices of employers and unions all relate to this declaration of the rights of employees.

UNFAIR LABOR PRACTICES

Employer Unfair Labor Practices
Sec. 8(a) (1-5)

There are five unfair labor practices by employers which violate these rights:

1. To interfere with, restrain or coerce employees in the exercise of these rights;

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Bulletin No. 5

Civil and Criminal Penalties For Violations of the Taft-Hartley Law

ISSUED BY THE
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